

THE WAY

Founding Director Recruitment & Acceptance Kit

Recruit, screen, interview, appoint and onboard the additional people required for lawful and independent governance

Version 1.2 | September 21, 2026

Working legal/operational package for UNDECIDED - not a substitute for attorney or tax-professional review

1. Immediate recruitment objective

The organization presently has one certain founder/director candidate. The legal minimum is three directors, but the governance target is five formation directors and later 7-11 directors. The immediate recruitment objective is therefore four additional formation directors, with at least two additional people required before lawful Board operation.

Highest priority: Recruit an independent Chair candidate and a Secretary candidate first. The Secretary cannot be the same individual as the President. A finance-capable director and a safeguarding/integrity-capable director are the next priorities.

Seat	Preferred profile	Independence target	Priority
Founder / President	Founder; executive/religious/research leadership	Not independent	Existing
Independent Chair	Governance judgment; willing to supervise and if necessary oppose founder/executive	Independent	1
Secretary	Reliable records/minutes; governance discipline; separate from President	Independent preferred	1
Finance / Treasurer director	Budget/accounting/controls; no dependence on founder	Independent	2
Safeguarding / Integrity director	Child/vulnerable-person safety, investigations, ethics or compliance orientation	Independent	2

2. What a founding director is agreeing to govern

A director is not being asked to endorse every theological hypothesis or become a spiritual subordinate. A director is accepting fiduciary responsibility for a Tennessee nonprofit religious corporation and the duty to preserve lawful governance, mission, financial integrity, safeguarding, and institutional independence.

- Protect the mission without protecting the founder from accountability.
- Review finances, compensation, conflicts and major transactions rather than rubber-stamping them.
- Ensure complaints against senior leaders can reach independent decision-makers.
- Protect the constitutional distinction between religious community and corporate authority.
- Ask difficult questions about private benefit, related-party transactions, housing/property, charitable assistance, children, fundraising and paid staff.
- Be willing to vote against the founder or executive when fiduciary duty requires it.
- Keep appropriate confidentiality while refusing secrecy that conceals abuse, illegality, fraud or safeguarding failures.

3. Independence standard

A candidate may still be legally eligible while not being independent. For this project, independence is a governance category used to keep oversight credible.

Question	If yes, effect
Is the candidate the founder's spouse, parent, child, sibling, close relative, or intimate partner?	Normally not independent.
Is the candidate employed by, paid by, housed by, or materially financially dependent on the founder or organization?	Normally not independent.

Question	If yes, effect
Does the candidate own or control a vendor, landlord, lender, contractor or major counterparty?	Conflict; likely not independent for affected matters.
Does the candidate have a major business partnership, debt, investment or shared property with the founder?	Potential loss of independence; disclose and assess.
Does the candidate receive pastoral/counseling support from the founder in a way that may impair oversight?	Assess carefully; may impair independence.
Would the candidate realistically investigate, suspend, or remove the founder if evidence required it?	A "no" is disqualifying for an independent oversight seat.

4. Candidate invitation - reusable draft

Suggested invitation language:

Invitation: I am forming a Tennessee nonprofit religious organization around the Way, a developing religious community designed with unusually strong safeguards for conscience, safe exit, financial transparency, child protection, independent complaints, and limits on founder power. I am looking for founding directors who are willing to govern the institution rather than simply support me personally. The role includes fiduciary responsibility, review of finances and conflicts, oversight of executive leadership, and willingness to challenge or investigate the founder if necessary. You would receive the governing documents before deciding, and no theological loyalty to me is expected. Would you be willing to review the board information packet and have a candid conversation about whether the role fits you?

5. Candidate interview guide

1. What would make you vote against the founder or President even if you personally trusted him?
2. If a complaint alleged misconduct by the founder, what process would you expect before deciding anything?
3. How would you distinguish religious disagreement from misconduct?
4. What financial information would you expect to see regularly as a director?
5. How should the organization handle a transaction involving a founder-relative, director-owned company, or property controlled by an insider?
6. What would concern you about a religious organization providing employment, housing, education, pastoral care and spiritual authority to the same person?
7. If attendance or donations declined because leadership disclosed a serious problem honestly, how would you think about that tradeoff?
8. What should happen when a participant says a religious teaching harmed them but leadership believes the teaching is sincere?
9. Are there circumstances in which you would resign rather than support a Board decision? What are they?
10. Can you commit to reading materials, attending meetings, maintaining confidentiality appropriately, and completing annual conflict/independence disclosures?

6. Candidate conflict and independence disclosure

Disclosure item	Candidate response
Full legal name	[[RESPONSE]]
Home city/state	[[RESPONSE]]

Disclosure item	Candidate response
Current employer / business	[[RESPONSE]]
Relationship to founder	[[RESPONSE]]
Relationship to other proposed directors	[[RESPONSE]]
Employment/consulting with organization	[[RESPONSE]]
Vendor/landlord/lender relationship	[[RESPONSE]]
Loans/debts/guarantees/shared ventures	[[RESPONSE]]
Gifts/housing/financial support	[[RESPONSE]]
Family/intimate relationships relevant to oversight	[[RESPONSE]]
Pastoral/counseling dependency relevant to oversight	[[RESPONSE]]
Litigation/material disputes	[[RESPONSE]]
Other nonprofit/business offices	[[RESPONSE]]
Other actual/apparent conflicts	[[RESPONSE]]

Candidate certification: I have disclosed relationships that could reasonably affect or appear to affect my judgment. I will update this disclosure when circumstances change and will follow recusal decisions. Signature: _____ Date: _____

7. Director acceptance and fiduciary acknowledgement

I, [[NAME]], accept appointment/election as a director of [[LEGAL_NAME]], Inc., effective [[DATE]], subject to successful legal formation and the governing documents. I understand that my duties run to the corporation and its exempt purposes, not to the founder personally. I agree to act in good faith, with appropriate care, in the organization's best interests, to disclose conflicts, to preserve safeguarding and non-retaliation systems, and to participate in independent review of insider matters.

Signature: _____ Date: _____

8. Officer-specific role briefs

Independent Chair

Organizes Board work, protects executive sessions, ensures founder/CEO evaluation, controls agenda access for governance matters, and supports independent investigations. Does not become the spiritual superior of the Assembly.

Secretary

Maintains or oversees minutes and authenticated corporate records, tracks resolutions and terms, and ensures Board actions are actually documented. Must be a different person from the President.

Treasurer / Finance lead

Oversees financial reporting, budget discipline, reconciliations, restricted funds, insurance/tax coordination and financial controls. Does not personally perform every bookkeeping function.

Safeguarding / Integrity lead

Oversees safeguarding architecture, independent complaint routes, retaliation review, senior-leader conflict screening, external investigation triggers and integrity reporting.

9. Candidate decision matrix

Candidate	Independent?	Chair fit	Secretary fit	Finance fit	Safeguarding fit	Concerns	Next step
[[NAME 1]]							
[[NAME 2]]							
[[NAME 3]]							
[[NAME 4]]							
[[NAME 5]]							

10. First-30-day onboarding

1. Read Charter draft, Bylaws, Constitution of the Way v1.0, Teaching & Practice Baseline, Companion Handbook and Integrity Framework.
2. Complete conflict/independence disclosure and identify recusals.
3. Review director duties, records, meeting cadence, insurance plan and document hierarchy.
4. Review founder compensation rule and related-party transaction process.
5. Review safeguarding/mandatory-reporting route and complaint/investigation protocol.
6. Complete tabletop exercises: founder complaint; child-safety disclosure; related-party transaction; financial-control failure.
7. Confirm officer/committee assignments and Board calendar.

11. Recruitment boundaries

- Do not recruit directors merely because they are personally loyal, spiritually impressed, financially dependent, or unable to say no.
- Do not promise future employment, housing, business, spiritual rank, or compensation in exchange for Board service.
- Do not conceal the fact that directors may need to investigate or remove the founder/executive.
- Do not describe a candidate as a director publicly until the lawful appointment/election is effective.
- Do not allow urgency around incorporation to substitute for basic competence, independence, and character screening.